

PROBATE COURT OF FRANKLIN COUNTY, OHIO
JEFFREY D. MACKEY, JUDGE

ESTATE OF _____, DECEASED
CASE NO. _____

APPLICATION TO SELL PERSONAL PROPERTY
Application No. _____

[R.C. 2113.40, 2113.41, 2113.43, and 2113.43]

The fiduciary asks the court to authorize the sale of the personal property listed on the following schedule, at a public or private sale, for a fixed price or for the best price obtainable, and for cash or on terms as the court determines.

The fiduciary states that all of the following is true:

The proposed sale will be in the best interests of the estate.

None of the property is subject to a demand for distribution in kind from the surviving spouse or from another entitled beneficiary.

None of the property is subject to a wish in the decedent's Will that the property not be sold.

If any of the property is specifically bequeathed, either its sale is necessary to pay debts, or the persons entitled to the property have consented to the sale.

☐ The decedent had a surviving spouse, and the sale would take place before the end of the period when the surviving spouse may elect to take the property at the appraised value. **[Check whichever applies]**

☐ the surviving spouse has either consented to or waived notice of the sale.

☐ the surviving spouse does not consent to the sale.

☐ The property is not perishable, and the surviving spouse is entitled to notice of the sale as provided by law.

☐ Additionally: **[Provide any special allegations or information]** _____

Finally, the fiduciary understands that if there is a public sale, the fiduciary must give notice by either (1) advertisement in a newspaper of general circulation in the county, appearing at least three times during the fifteen days before the sale; or (2) advertisement posted in at least five public places in the township or municipal corporation where the sale will take place, posted at least fifteen days before the sale.

Fiduciary

SCHEDULE OF PERSONAL PROPERTY FOR SALE

Item	Sale Method: Public/Private	Price: Fixed/Best	Payment: Cash/Terms

CONSENT TO SALE AND WAIVER OF NOTICE

The undersigned, including the decedent's surviving spouse and/or other interested persons, hereby waive notice and give consent to the sale of property as described above.

Surviving Spouse

